USA TRIATHLON

RACE DIRECTOR RESOURCE GUIDE:

STARTING YOUR BUSINESS

INTRODUCTION:

Whether you are starting your own triathlon, acquiring an existing race, or looking to expand your event portfolio, it is important to recognize there's more to executing successful races than the operations and logistics. The same care you put into developing your race courses and curating your athlete experience needs to be put into the business functions of your company. At the end of the day, your race business is exactly that — a business — and to be successful, it needs to be treated as such. This means establishing an operational framework that values compliance, financial responsibility, and efficiency.

Building your business will be an individualized process as every Race Director has different circumstances when it comes to goals, financials, taxes, and local/state requirements. The purpose of this section is to provide a broad overview of the business formation process and some areas to consider as you build (and grow) your company. In this section, we will explore the following topics:

- Establishing your support team
- Forming your business
- Finances
- Insurance
- Technology

**Note: While this Guide does provide information about tax, legal, and insurance considerations, this is not to be taken as advice. Since rules change over time and can vary by location, consult professionals for specific guidance.*

ESTABLISHING YOUR SUPPORT TEAM:

As you look to start and grow your business, it's important to surround yourself with the right people. This is especially true when it comes to the legal and financial advising, as missteps can have serious, costly implications. While hiring support can be intimidating, it's also one of the smartest things you can do as a business owner. Knowing that some of these business functions are in good hands can relieve some of the pressure and allows you to focus on your expertise — building, planning, and executing races.

First, identify what it is you need help with and then find who might be able to help you. Here are some professionals who might be able to support your business:

ROLE	WHAT THEY CAN HELP WITH	WHEN TO CALL
Attorney Seek out attorneys that specialize in business law and have experience working with small businesses.	• Selecting and establishing your legal business entity • Drafting contracts, waivers, and liability releases • Protect your interest during sales/acquisitions of company assets • Advise if any legal action is brought against the business and/or one of your events • Trademark attorneys can help to simply the process and ensure application accuracy	• When you're first starting out and need to establish your business • When you need to draft or negotiate contract language • If there are liability concerns or if there is the possibility of legal action • If you're involved in the sales/acquisition of other events, assets, or property
CPA *(Certified Public Accountant)* CPAs are licensed accountants. They are some of the most versatile professionals in the finance world.	• Advise on legal and financial structure of the business • Develop a tax strategy • Financial statement audits • Prepare and file your business taxes (and usually your personal taxes) • Advise on business growth strategy, cash flow, debt, and budgets	• When you're first starting out and need to choose a legal structure • At tax time or anytime during the year if you need strategic advice • If you have a difficult financial situation • Anytime you're about to make a big financial change • When deciding whether to hire staff as independent contractors or employees

Tax Preparer

Tax preparers are not licensed CPAs and their financial expertise is zeroed in on taxes. They are generally less expensive than CPAs. You likely do not need both a CPA and a tax preparer to file your taxes

- Prepare your business and personal taxes
- Help advise on a tax strategy for your business
- Answer your tax questions
- Represent you in an audit and before the IRS

- At tax time, if you need tax advice or your tax situation is changing
- If you receive a notice from the IRS about your taxes
- If you're audited by the IRS

Since tax preparers are less expensive it might be a good option if you have a simple business model and don't need ongoing financial advice

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Bookkeeper

Bookkeepers help to process your financial data and ensure your books are up to date. They're intimately involved in the business and you'll have interactions with them on a daily, weekly, and/or monthly basis depending on the size of your business

- Set up your accounting software
- Enter financial data into the software program as needed
- Reconcile your accounts
- Design your invoicing, accounts receivable, and accounts payable process
- Manage accounts payable and accounts receivable
- Process payroll and payments

- To set up and maintain your record keeping and software systems
- Daily, weekly, and monthly support with your financial operations
- To help clean up messy bookkeeping files that have been neglected
- To catch up on financial recordkeeping if you've fallen behind

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Financial Planner

Help to plan your financial future and manage your personal finances.

- Manage your investments and advise on an investment strategy and financial goals
- Manage your debt
- Retirement planning
- Insurance Planning
- Overall wealth management

- If your personal finances need some attention and you need support managing your money
- You have long-term financial goals and need a strategic plan
- To help you select the best insurance options for you and your family

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Insurance Broker

- Assess and mitigate potential risks
- Help source Business Insurance policies
- Work with insurance carriers to help process claims
- Advise on Employee Benefit programs

- When you're first starting out and establishing your business
- When you need Certificates of Insurance issued
- If you start or acquire new events
- If you're looking to hire employees

FORMING YOUR BUSINESS:

1. Select a Business Structure: Your business structure affects your personal liability, the amount of taxes you'll pay, and all the subsequent paperwork you'll file. The first step in forming your own business is insulating your liability. This helps to protect you as the business owner. If an incident occurs and litigation is brought against the business, you want to be in a position where only the company's assets are subject to loss and your personal assets are not at risk. Sole proprietorships and Partnerships are easy to form, but they do not separate your personal assets from those of the business. Limiting your personal liability can be achieved by establishing your business as a Limited Liability Corporation (LLC) or a Corporation. From a legal standpoint, both of these options afford the same liability protections. The primary difference between the two business types lies in how they are taxed.

For small businesses, Sub Chapter S (S-Corp) Status is often utilized as it can provide certain tax advantages. Consult with your accountant on which option is the most beneficial given your financial situation and work with your attorney to file for the establishment of the business within your state.

Here is a quick at-a-glance comparison of the characteristics of LLCs and S-Corps:

BUSINESS TYPE COMPARISON		
ATTRIBUTES	**LLC**	**S-CORP**
Limited Liability Protection	LLC members are not personally responsible for business debts or liabilities.	S-Corp Shareholders are not personally responsible for business debts or liabilities.
Management Flexibility	LLC's allow for a large variety of management structures based on your specific needs.	Less management flexibility as a board of directors must exist and the rules re: meetings and record-keeping are dictated by state and federal law.
Perpetual Existence	With the proper planning, LLCs can exist for generations.	S-Corps continue to exist even if the owners or majority shareholders leave or pass away.
Raising Capital	LLCs can raise money via banks and investors but cannot sell stocks.	S-Corps can get loans from banks, as well as distribute stock to up to 100 people.
Taxation	LLC members are taxed on their personal tax returns. The LLC itself is not taxed.	S-Corp shareholders are taxed on their personal tax returns. The S-Corp itself is not taxed.

	Owners are considered self-employed and must report income and expenses on their personal tax returns. As a result, they are subject to federal, state, and self-employment tax on all profits. Note that businesses can be set up as an LLC, but can opt to be taxed as an S-Corp. In instances where the company is generating high profits this might be a worthwhile consideration.	S-Corp owners can be set up as employees of the company, as opposed to the self-employed classification. This means that the owner's salary will be subject to Medicare and Social Security tax, but any of the company's profits over and above their salary will not. While there may be potential tax savings, there may be additional fees associated with having employees, the need for a payroll system, and accounting services.
Formation Fees	LLCs must pay state fees during the incorporation process. These fees are tax deductible.	S-Corps must pay state fees to legally incorporate. These fees are tax deductible.
Compliance Fees	While LLCs have less compliance requirements than other entity types, there are reports and licenses that need to be filed and maintained.	S-Corps typically need to file reports and pay compliance fees on an annual or semi-annual basis.

2. Choose Your Business Name: Once you've landed on a name you like for the business, it's important to confirm that this does not conflict with any existing companies. A cursory Google search for companies already operating under that name and a search of names filed with the US Patent & Trademark Office (uspto.gov) is a good start. Once you've established the name is unique and usable, you need to protect it. There are (4) ways to register your business name, all of which serve a different function and are legally independent:

ENTITY NAME	TRADEMARK	DOING BUSINESS AS (DBA)	DOMAIN NAME
Protection at the State Level	**Protection at the National Level**	**No Legal Protection, but might be legally required**	**Protection of website address**
The Entity Name is how the state identifies your business. Most states don't allow you to register a name that already exists. Some states require your entity name reflects the kind of business it represents	A Trademark can protect the name of your business, goods, and services at a National Level. Businesses in every state are subject to Trademark infringement lawsuits. Before landing on a name, check the Official Trademark Database for potential conflicts	A DBA (trade name/ assumed name) allows you to conduct business under a different identity from your formal business entity name. For example, "ABC Race Company" DBA "World's Best Triathlon". Most states require you to register your DBA if you use one	Once you register your domain name (website address), no one else can use it for as long as you continue to own it. If someone else has already registered the domain name you wanted to use, you can register another name. It does not have to be the same as your legal business name, trademark, or DBA

3. Register the Business with your State: Your location and business structure determine how you'll need to register your business. In most instances, when you file for your LLC or Corporation to be established, this also serves as registration within your state. If your state requires this to be a separate step, it's usually as simple as registering your business name with state and local governments. The documents needed and the total cost to register your business varies by state.

Keep in mind that you may have to register in multiple states if you host events in areas that fall outside your "home base" state. You're considered to be conducting business activities in a state when:

- Your business has a physical presence in the state
- A portion of your company's revenue comes from the state
- Any of your employees work in the state

4. Get a Federal Tax ID Number: An Employer Identification Number (EIN) is a nine-digit number that identifies your company with the IRS. All S-Corps are required to have an EIN. Single-member LLCs do not need an EIN and can operate with the owner's Social Security Number in its place. However, keep in mind that if you intend to hire any additional employees of the LLC, you will be required to get an EIN. There's no cost to obtain an EIN and you can apply online directly through the IRS.

5. Get a State Tax ID Number: The need for a state tax ID number ties directly to whether your business must pay state taxes. In some instances, your Federal EIN also serves as your State Tax ID number. Tax obligations differ at the state and local levels. Check your state's websites and consult with your accountant to determine if this step is necessary.

FINANCES:

Business Bank Account: As soon as you start making and receiving payments as your business, you should look to open a business bank account. Once you have your Federal EIN, you'll be able to get the process started with your local bank. Here are a few types of business bank accounts:

SAVINGS ACCOUNT	CHECKING ACCOUNT	MERCHANT SERVICES ACCOUNT	CREDIT CARD ACCOUNT
Business savings accounts are used to save earnings for future business use including major purchases, expansion and/or providing a financial cushion	Business checking accounts for used primarily for day-to-day transactions. These accounts allow you to make deposits and withdrawals and offer checks and debit card capabilities	A merchant services account allows you to accept credit card and debit card transactions from customers	A business credit card can be used for business expenses to help keep personal transactions and company transactions separate. It also helps to build business credit, which banks and lenders which will be considered if you apply for a loan at any point

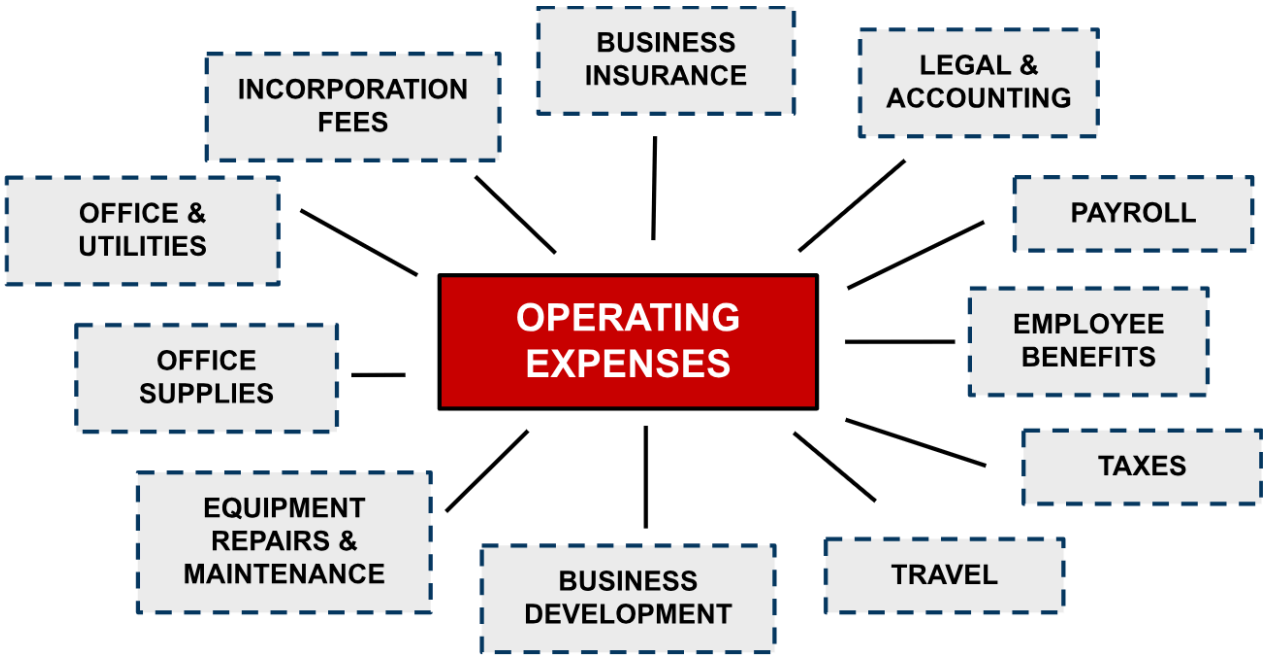
A business bank offers the following benefits that you won't receive by using your personal bank account(s) for company business:

- **Protection:** Separating your business funds from your personal funds helps to insulate your personal finances.
- **Professionalism:** Customers will be able to pay you with credit cards and make checks out to your business instead of directly to you. You'll also be able to authorize employees to handle day-to-day banking tasks on behalf of the business.
- **Purchasing Power:** Credit card accounts allow your business to make large startup purchases and helps to establish a credit history.
- **Preparedness:** Business banking typically includes an option for a line of credit for the company which can be used in an emergency or if you need to purchase new equipment / investments.

DID YOU KNOW?

Line of Credit: A line of credit provides "money on demand" It is a preset amount of money that the bank has agreed to lend you. You can draw from the line of credit when you need it, up to the maximum amount. You'll be responsible to pay interest on the amount that you borrow. Once you pay back the borrowed funds, the amount is again available to borrow on the line of credit. Flexibility is the key!

Startup Costs & Operating Expenses: Determining your startup costs is a critical step to ensure you have enough funds to provide a runway for your business to take off. In addition to event-related expenses (i.e. toilets, cones, etc), there are also operating expenses to consider. In this section, we'll focus on identifying general business expenses and a way of tracking these costs alongside your event P&Ls (profit and loss statement) to provide you with a holistic view of your company's financials. Check out the **P&L Management Resource Guide** for more information. Once you figure out the estimated sum total of money you will need, you'll be able to decide how you're going to get it - from your personal savings, investors, loans and/or event sponsorships.



The first step in pulling together the your operating expenses is making decisions about how your business will operate:

- **Home Office vs. Office Space:** It's important to establish the environment where you'll be able to get work done. This might be a space within your own home or it may require you to rent a dedicated or shared office space. This decision may be influenced by a number of factors including your personal situation, the number of annual events you produce, and/or the size of your team.

HOME OFFICE VS. OFFICE SPACE	
HOME OFFICE	**OFFICE SPACE**
• No commute • No rental costs or long term lease commitments • May increase lighting and heating/air conditioning bills to be home all day • Less structure and separation between work and home life may make it more difficult to focus • For your taxes, you can potentially write off home office expenses. Be sure to keep detailed records of your housing costs.	• Introduces a commute to your work day • Rental costs and lease agreements. Additional overhead costs for office furniture, equipment, and amenities. • Flexibility to grow your team • Ability to host in-person meetings and/or collaboration days with your teams • Dedicated business address for shipment of race supplies • For your taxes, you'll be able to claim your rent and office supplies as business expenses.

Cash Flow Forecasting: Cash flow is the amount of cash that comes and goes in and out of your business during a given period of time. It's the liquidity you have to be able to pay your bills, expenses, and payroll. Forecasting your cash flow helps to predict how much money you'll have on-hand during given periods of the year. Here are some key questions that forecasting can help to answer:

- Do I have enough revenue to stay operational? For how long?
- Can I hire more employees or contractors? If not now, when?
- When should I apply for a loan and/or solicit sponsorships? How much will I need?

DID YOU KNOW?

During the COVID-19 pandemic, we saw the importance of cash flow reporting. This tool helped Race Directors to make business decisions in the midst of the cancelled events and decreased participation that characterized 2020 and then the reintroduction to racing in the years that have followed.

Race management is a unique industry when it comes to cash flow, as races receive money from registrants before any products and services have been provided. When registration opens for a particular event, there is an influx of cash (hopefully!). It's important to manage this money carefully to ensure allocation to all projected expenses leading up to the event. In circumstances where events are canceled and/or refunds need to be issued, you'll need to know where this money is coming from and the extent to which it's already been used.

KEY FORECASTING DEFINITIONS

Revenue: Income from your business activities

Workforce: The people you hire to run your business

Operating Expenses: The expense of running your business

Capital Expenses: Investments you make in your business

Assets: Everything your business owns

Liabilities: What your business owes to others

Here are a few steps to starting cash flow forecasting:

Step #1: Set Goals

Set realistic goals for your business, starting with short-term goals for the next 6-12 months as well as long-term goals. Determine the current status of each of these benchmarks and where you'd like to eventually be. Goals should be specific and measurable. Here are some examples:

- Number of total registrants
- Number of new registrants per race
- Number of annual races
- Sponsorship revenues
- Dollars of revenue growth
- Cash on hand
- Staffing goals

Step #2: Identify Drivers

Drivers are the factors that contribute to the success or failures of your goals. They're the activities that need to happen in order to get positive results and point to the cause-and-effect relationship between facets of your business. Type of drivers include:

- People: Who do I need to hire or retain?
- Hours: How many production hours are necessary? How do the production and execution hours affect my staffing needs?
- Expenses: What expenses are necessary to keep the business operational?
- Races: Your races are your business' product. Which race components make the business money?

Step #3: Build your Cash Flow Template

To map out the revenue and expenses for your calendar year, it's helpful to document your projected cash flow to have a pulse on when the money that's coming and going. This template provides a baseline to be able to track Business Operational expenses as well as the revenue and expenses associated with each of your events.

Accounting Software: Accounting software is a tool that can help track your money as it flows in and out of your accounts. Most software has the ability to sync with your bank accounts, credit card accounts, and potentially your race registration platform. The software organizes and stores your financial data in one location allowing you to get a full view of your business' financial performance in real time.

ACCOUNTING SOFTWARE FUNCTIONS	
FUNCTION	**DESCRIPTION**
Automate Invoices	Most platforms have automated invoicing where you can create recurring invoices, send follow-up reminders, and accept digital payments directly from the invoices.
Track Expenses	Accounting software allows you to scan, record, and reconcile receipts so they are applied to the correct events and expense categories.
Manage and Pay Bills	Bills are organized in one place with the ability to schedule and make payments online
Reconcile Bank and Credit Card Statements	You can access your bank and credit card statements directly from your accounting software which allows you to match and reconcile bank transactions automatically
Payroll	Some accounting software has payroll functionality baked in. If that's not the case, it's possible they have the functionality to connect to your payroll software to be able to reconcile payments.
Tax Form Preparation	Accounting softwares help to automatically calculate sales tax and prepare tax forms for you.
Easy Collaboration with your Accountant	Since all your financials are organized in one central location, it makes it much easier for your accountant to do their job. Many softwares allow your accountant to have access free of charge. It frees up the time it would take to gather the documents and information your accountant needs.
Reporting & Analysis	Accounting softwares provide an at-a-glance view of how your business is doing with real time P&Ls, expense reports, and balance sheet reports.

INSURANCE:

When you establish your business structure (i.e. LLC, S-Corp), this typically protects your personal property from potential risks of litigation, but not your business assets. Even within these established frameworks, the protections are limited. Business insurance can help fill the gaps to insure that all necessary personal and business assets are protected in the event of an unexpected incident.

1. **Required Insurance Types**: The Federal government requires every business with employees to have Workers Compensation, Unemployment, and Disability insurance. Some states also require additional insurance. Check out your state's insurance requirements to make sure you're in compliance.

WORKER'S COMPENSATION INSURANCE	DISABILITY INSURANCE	UNEMPLOYMENT INSURANCE
Provides cash benefits and/or medical care to workers who are injured or become ill as a direct result of their job. Employers pay for this insurance without any employee contributions	Similar to Worker's Compensation, Disability Insurance provides cash benefits in the event of an injury or illness that prevents the employee from working. However, the injury or illness does not have to be a direct result of their job. Employers pay for this insurance without any employee contributions	Unemployment Insurance is a federal-state program that provides payment to qualifying workers who have lost work through no fault of their own. As an employer, you automatically contribute to this program via your employer taxes.

2. **Additional Insurance Types:** In addition to the types of insurance required by law, you can also source insurance to help source against other potential business risks. As a general rule of thumb, you should insure against things you would not otherwise be able to pay on your own. Consult with an insurance broker about what kinds of insurance coverage makes sense for your business and compare policies and pricing to determine the best course of action. Here are a few common types of insurance:

COMMON TYPES OF INSURANCE		
INSURANCE TYPE	**WHOS IT FOR**	**WHAT IT DOES**
General Liability Insurance	Any business	This coverage protects against financial loss as the result of bodily injury, property damage, medical expenses, libel, slander, defending lawsuits, and settlement bonds or judgements.
Commercial Automobile Insurance	Businesses that use vehicles as part of the business operations	This coverage covers business vehicles for damage to your vehicle(s), driver injury, injury to someone else, and damage to someone else's property.
Professional Liability Insurance	Businesses that provide services to customers	This coverage protects against financial loss as a result of malpractice, errors, or negligence.

Commercial Property Insurance	Businesses with a significant amount of property and physical assets	This coverage protects your business against loss and damage of company property due a wide variety of events such as fire, smoke, wind, and hail storms, civil disobedience, and vandalism.
Home-Based Business Insurance	Businesses that are run out of the owner's personal home	This coverage can be added to a homeowner's insurance to help protect a small amount of business equipment and liability coverage for third-party injuries.
Commercial Umbrellas Insurance	Businesses that have significant exposure	Fills in the gaps left by other policies and extend the coverage of other liability insurance policies, most often auto and general liability
Business Owner's Policy	Small business owners, especially home-based business owners	A business owner's policy is an insurance package that combines all the typical coverage options into one bundle with the goal of simplifying and reducing the potential costs of the insurance buying process.
Business Interruption Insurance	Businesses with a significant risk that incidents may hinder operations	In the event of an incident that prevents your business from operating, this coverage can help cover operational expenses as well as lost revenue that would have otherwise been earned if the business was able to operate.

USAT Insurance Offerings: At this point, you're probably wondering where USAT insurance fits into the mix. USAT sanctioned events receive General Liability insurance for the event with the opportunity to add additional insureds to the policy as outlined below. While this coverage provides a layer of protection for incidents that occur on-site at the event, it does not afford protections for any other incidents that may occur during the operation of your business for the remainder of the year.

Consult with an Insurance Advisor about the potential risks associated with your business operations and the insurance policies you should have in place for your business. USAT has established the Event Director's Insurance Program to provide insurance for day-to-day operations. The program provides access to affordable, easy to obtain insurance through USAT's insurance provider. Please email eventservices@usatriathlon.org for more information.

USAT INSURANCE OFFERINGS	
STANDARD COVERAGE FOR ALL USAT SANCTIONED EVENTS	**EVENT DIRECTORS INSURANCE PROGRAM COVERAGE ADD-ONS**
Insurance Coverage specific to event operations	***Insurance Coverage for day-to-day Business Operations***
General Liability Coverage: ● $1M per occurrence ● $2M general aggregate - per event ● No worker's compensation ● No automobile coverage Excess Liability Coverage (Umbrella): ● $10M per occurrence ● $10M general aggregate - per event Participant Accident Medical Coverage ● $25K maximum benefit per injury ● $250 deductible with primary insurance ● $1,000 deductible without primary insurance Also included: ● Watercraft - Provides accident/damage coverage to watercrafts while on the race course only ● Motorcycle - Provides accident/damage to motorcycles while on the race course only	General Liability Coverage: ● Bodily Injury Liability ● Property Damage Liability ● Personal & Advertising Injury Liability ● Products-Completed Operations Liability ● Premises Liability (for your office exposure) ● Host Liquor Liability (complimentary service only) ● Medical Expense coverage Automobile Liability Coverage: ● For liability arising out of your use of covered autos for day-to-day business and events Property/Inland Marine Coverage: ● Optional coverage for theft, loss, or damage to your business property and equipment
COVERAGE EXTENDS TO: Class 1 - Named Insured (no extra cost): ● Race Director ● Race Organizing Committee Company ● Sponsors Class 2 - Additional Insured (additional cost) ● Property Owner ● Facility ● Government Entity ● Venue ● Others as required by contract	**COVERAGE EXTENDS TO:** ● Company ● Additional insureds as needed

TECHNOLOGY:

As you kickstart your business, it's important to establish a framework for how your team will operate. The technological infrastructure in place largely affects how work is done, communicated, and shared. A systematic, organized approach to information management can help to set a precedent for efficient, high quality work. Here are a few key considerations:

- **Website**: Develop a plan for your online presence and secure your domain name(s). Depending on the size/scale of the business and your events, determine if it's necessary for each event to have its own unique site or for multiple events to be featured on one joint company site. Plot out the user flow for the website(s) to understand how athletes will interact with your content.

- **Phones:** If having a dedicated phone line(s) is something that's important to your events there are a few ways to approach phone setup:

POTS PHONE	CELL PHONE	VoIP PHONE
A POTS (Plain Old Telephone Service) Phone is a traditional landline. This rings to a physical phone in a stationary location	Consider having a cell phone line dedicated to your company operations. Since the phone is mobile, it can be used on-site at the event and can be passed between team members to use/monitor throughout race weekend	VoIP (Voice Over IP) Phones are internet-based and forwards to existing phone lines. They allow for quick and easy switches to forwarding numbers, as well as trunking capabilities where the line can be set up to ring to multiple people (ex. Google Voice, Telzio, Dialpad)

- **Email Domain:** Utilizing company email addresses that contain the business name (as opposed to personal email addresses) helps provide a sense of legitimacy and professionalism to your communication. Additionally, this ensures you have ownership over all conversations, which can help from a sustainability perspective. In the event an employee leaves the organization, you'll still be able to access emails.

- **Shared Calendars:** Most email domains also come with calendar functionality to be able to schedule and keep track of upcoming appointments. You can share calendar access with members of your team so they can see when you're busy or free to allow for easier coordination of meetings, calls, and site visits.

- **Data Storage and Backup:** Cloud storage and the ability to backup files has become a critical part of business operations. Today's cloud storage options are relatively inexpensive and easy to navigate. They ensure the files are safe in the case of a hardware failure and also provide team members with the ability to view files remotely on multiple devices, including mobile phones. This allows for document sharing, collaborative editing, and real time updates.

- **Collaboration Tools:** There are many programs and softwares on the market to help teams work more efficiently. Evaluate the workflow and needs of your team to determine if any of these types of tools might help streamline communication:
    - Instant messenger platforms (i.e. Slack, gchat, Teams)
    - Virtual Conferencing Technology (i.e. Zoom, Teams)
    - Project Management Platforms / Shared To-Do Lists (i.e. Basecamp, Asana, Monday.com)

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